



Note: *The draft you are looking for begins on the next page.*

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However, unexpected issues occasionally arise, or legislation is passed—in this case, we will post a new draft of the form to alert users that changes were made to the previously posted draft. Thus, there are never any changes to the last posted draft of the form and the final revision of the form. Forms and instructions are subject to OMB approval before they can be officially released, so we post drafts of them until they are approved. Drafts of instructions and publications usually have some additional changes before their final release. Early release drafts are posted at [IRS.gov/DraftForms](https://www.irs.gov/DraftForms) and remain there after the final release is posted at [IRS.gov/LatestForms](https://www.irs.gov/LatestForms). Also see [IRS.gov/Forms](https://www.irs.gov/Forms).

Most forms and publications have a page on IRS.gov: [IRS.gov/Form1040](https://www.irs.gov/Form1040) for Form 1040; [IRS.gov/Pub501](https://www.irs.gov/Pub501) for Pub. 501; [IRS.gov/W4](https://www.irs.gov/W4) for Form W-4; and [IRS.gov/ScheduleA](https://www.irs.gov/ScheduleA) for Schedule A (Form 1040), for example, and similarly for other forms, publications, and schedules for Form 1040. When typing in a link, type it into the address bar of your browser, not a Search box on IRS.gov.

If you wish, you can submit comments to the IRS about draft or final forms, instructions, or publications at [IRS.gov/FormsComments](https://www.irs.gov/FormsComments). Include "NTF" followed by the form or publication number (for example, "NTF1040", "NTFW4", "NTF501", etc.) in the body of the message to route your message properly. We cannot respond to all comments due to the high volume we receive and may not be able to consider many suggestions until the subsequent revision of the product, but we will review each "NTF" message.

If you have comments on reducing paperwork and respondent (filer) burden, with respect to draft or final forms, please respond to the relevant information collection through the Federal Register process; for more information, click [here](#).

Form **5329**Department of the Treasury
Internal Revenue Service**Additional Taxes on Qualified Plans
(Including IRAs) and Other Tax-Favored Accounts**

Attach to Form 1040, 1040-SR, 1040-NR, or 1041.

Go to www.irs.gov/Form5329 for instructions and the latest information.

OMB No. 1545-0074

2026Attachment
Sequence No. **29**

Name of individual subject to additional tax. If married filing jointly, see instructions.

Your social security number

**Fill in Your Address Only
if You Are Filing This
Form by Itself and Not
With Your Tax Return**

Home address (number and street), or P.O. box if mail is not delivered to your home

Apt. no.

If this is an amended
return, check here ☐

City, town, or post office. If you have a foreign address, also complete spaces below.

State

ZIP code

Foreign country name

Foreign province/state/county

Foreign postal code

If you **only** owe the additional 10% tax on the full amount of the early distributions, you may be able to report this tax directly on Schedule 2 (Form 1040), line 5, without filing Form 5329. See instructions.**Part I Additional Tax on Early Distributions.** Complete this part if you took a taxable distribution (other than a qualified disaster recovery distribution) before you reached age 59½ from a qualified retirement plan (including an IRA and Trump account (after the growth period of the Trump account)) or modified endowment contract (unless you are reporting this tax directly on Schedule 2 (Form 1040)—see above). You may also have to complete this part to indicate that you qualify for an exception to the additional tax on early distributions or for certain Roth IRA distributions. See instructions.**1** Early distributions includible in income (see instructions). For Roth IRA distributions, see instructions.**1****2** Early distributions included on line 1 that are not subject to the additional tax (see instructions).**2**

Enter the appropriate exception number from the instructions:

2**3** Amount subject to additional tax. Subtract line 2 from line 1**3****4** **Additional tax.** Enter 10% (0.10) of line 3. Include this amount on Schedule 2 (Form 1040), line 5**4****Caution:** If any part of the amount on line 3 was a distribution from a SIMPLE IRA, you may have to include 25% of that amount on line 4 instead of 10%. See instructions.**Part II Additional Tax on Certain Distributions From Education Accounts and ABLER Accounts.** Complete this part if you included an amount in income, on Schedule 1 (Form 1040), line 8z, from a Coverdell education savings account (ESA) or a qualified tuition program (QTP), or on Schedule 1 (Form 1040), line 8q, from an ABLER account.**5** Distributions included in income from a Coverdell ESA, a QTP, or an ABLER account**5****6** Distributions included on line 5 that are not subject to the additional tax (see instructions)**6****7** Amount subject to additional tax. Subtract line 6 from line 5**7****8** **Additional tax.** Enter 10% (0.10) of line 7. Include this amount on Schedule 2 (Form 1040), line 5**8****Part III Additional Tax on Excess Contributions to Traditional IRAs.** Complete this part if you contributed more to your traditional IRAs (which include your traditional SEP IRAs and traditional SIMPLE IRAs) for 2026 than is allowable or you had an amount on line 17 of your 2025 Form 5329. Do not complete this part for a Trump account if the account beneficiary is under age 18 at the end of 2026 (see Part X).**9** Enter your excess contributions from line 16 of your 2025 Form 5329. See instructions. If zero, go to line 15**9****10** If your traditional IRA contributions for 2026 are less than your maximum allowable contribution, see instructions. Otherwise, enter -0-**10****11** 2026 traditional IRA distributions included in income (see instructions)**11****12** 2026 distributions of prior year excess contributions to traditional IRAs (see instructions)**12****13** Add lines 10, 11, and 12**13****14** Prior year excess contributions. Subtract line 13 from line 9. If zero or less, enter -0-**14****15** Excess contributions for 2026 (see instructions)**15****16** Total excess contributions. Add lines 14 and 15**16****17** **Additional tax.** Enter 6% (0.06) of the **smaller** of line 16 or the value of your traditional IRAs on December 31, 2026 (including 2026 contributions made in 2027). Include this amount on Schedule 2 (Form 1040), line 18**17****Part IV Additional Tax on Excess Contributions to Roth IRAs.** Complete this part if you contributed more to your Roth IRAs (which include your Roth SEP IRAs and Roth SIMPLE IRAs) for 2026 than is allowable or you had an amount on line 25 of your 2025 Form 5329.**18** Enter your excess contributions from line 24 of your 2025 Form 5329. See instructions. If zero, go to line 23**18****19** If your Roth IRA contributions for 2026 are less than your maximum allowable contribution, see instructions. Otherwise, enter -0-**19****20** 2026 distributions from your Roth IRAs (see instructions)**20****21** Add lines 19 and 20**21****22** Prior year excess contributions. Subtract line 21 from line 18. If zero or less, enter -0-**22****23** Excess contributions for 2026 (see instructions)**23****24** Total excess contributions. Add lines 22 and 23**24****25** **Additional tax.** Enter 6% (0.06) of the **smaller** of line 24 or the value of your Roth IRAs on December 31, 2026 (including 2026 contributions made in 2027). Include this amount on Schedule 2 (Form 1040), line 18**25**

Part V Additional Tax on Excess Contributions to Coverdell ESAs. Complete this part if the contributions to your Coverdell ESAs for 2026 were more than is allowable or you had an amount on line 33 of your 2025 Form 5329.

26	Enter the excess contributions from line 32 of your 2025 Form 5329. See instructions. If zero, go to line 31	26	
27	If the contributions to your Coverdell ESAs for 2026 were less than the maximum allowable contribution, see instructions. Otherwise, enter -0-	27	
28	2026 distributions from your Coverdell ESAs (see instructions)	28	
29	Add lines 27 and 28	29	
30	Prior year excess contributions. Subtract line 29 from line 26. If zero or less, enter -0-	30	
31	Excess contributions for 2026 (see instructions)	31	
32	Total excess contributions. Add lines 30 and 31	32	
33	Additional tax. Enter 6% (0.06) of the smaller of line 32 or the value of your Coverdell ESAs on December 31, 2026 (including 2026 contributions made in 2027). Include this amount on Schedule 2 (Form 1040), line 18	33	

Part VI Additional Tax on Excess Contributions to Archer MSAs. Complete this part if you or your employer contributed more to your Archer MSAs for 2026 than is allowable or you had an amount on line 41 of your 2025 Form 5329.

34	Enter the excess contributions from line 40 of your 2025 Form 5329. See instructions. If zero, go to line 39	34	
35	If the contributions to your Archer MSAs for 2026 are less than the maximum allowable contribution, see instructions. Otherwise, enter -0-	35	
36	2026 distributions from your Archer MSAs from Form 8853, line 8	36	
37	Add lines 35 and 36	37	
38	Prior year excess contributions. Subtract line 37 from line 34. If zero or less, enter -0-	38	
39	Excess contributions for 2026 (see instructions)	39	
40	Total excess contributions. Add lines 38 and 39	40	
41	Additional tax. Enter 6% (0.06) of the smaller of line 40 or the value of your Archer MSAs on December 31, 2026 (including 2026 contributions made in 2027). Include this amount on Schedule 2 (Form 1040), line 18	41	

Part VII Additional Tax on Excess Contributions to Health Savings Accounts (HSAs). Complete this part if you, someone on your behalf, or your employer contributed more to your HSAs for 2026 than is allowable or you had an amount on line 49 of your 2025 Form 5329.

42	Enter the excess contributions from line 48 of your 2025 Form 5329. If zero, go to line 47	42	
43	If the contributions to your HSAs for 2026 are less than the maximum allowable contribution, see instructions. Otherwise, enter -0-	43	
44	2026 distributions from your HSAs from Form 8889, line 16	44	
45	Add lines 43 and 44	45	
46	Prior year excess contributions. Subtract line 45 from line 42. If zero or less, enter -0-	46	
47	Excess contributions for 2026 (see instructions)	47	
48	Total excess contributions. Add lines 46 and 47	48	
49	Additional tax. Enter 6% (0.06) of the smaller of line 48 or the value of your HSAs on December 31, 2026 (including 2026 contributions made in 2027). Include this amount on Schedule 2 (Form 1040), line 18	49	

Part VIII Additional Tax on Excess Contributions to an ABLE Account. Complete this part if contributions to your ABLE account for 2026 were more than is allowable.

50	Excess contributions for 2026 (see instructions)	50	
51	Additional tax. Enter 6% (0.06) of the smaller of line 50 or the value of your ABLE account on December 31, 2026. Include this amount on Schedule 2 (Form 1040), line 18	51	

Part IX Additional Tax on Excess Accumulation in Qualified Retirement Plans (Including IRAs). Complete this part if you did not receive the minimum required distribution from your qualified retirement plan.

52a	Minimum required distribution for 2026 from all qualified plans for which you received a distribution of the full amount of the excess accumulation during the correction window	52a	
52b	Minimum required distribution for 2026 from all other plans	52b	
53a	Amount distributed to you during 2026 from all qualified plans for which you received a distribution of the full amount of the excess accumulation during the correction window	53a	
53b	Amount distributed to you during 2026 from all other plans	53b	
54a	Subtract line 53a from line 52a and multiply the result by 10% (0.10). If zero or less, enter -0-	54a	
54b	Subtract line 53b from line 52b and multiply the result by 25% (0.25). If zero or less, enter -0-	54b	
55	Add lines 54a and 54b. Include the total on Schedule 2 (Form 1040), line 18, or Form 1041, Schedule G, line 8	55	

Part X Additional Tax on Excess Contributions to Trump Accounts During the Growth Period. Complete this part if the account beneficiary has not attained age 18 by the end of 2026 and aggregate contributions to the Trump account for 2026, other than exempt contributions, were more than \$5,000.

56	Enter your total excess contributions for 2025. Caution: For 2026, this amount is zero because there were no Trump accounts in 2025. See instructions	56	
57	Excess contributions made during 2026 (see instructions)	57	
58	Add lines 56 and 57	58	
59	Distributions of excess contributions (not including earnings) under 530A(d)(5) (see instructions)	59	
60	Total excess contributions for 2026. Subtract line 59 from 58. If zero or less, enter -0-	60	
61	Additional tax. Enter 6% (0.06) of line 60. Include this amount on Schedule 2 (Form 1040), line 18	61	

Part XI Additional Tax on Income Attributable to Excess Contributions Distributed From Trump Accounts. Complete this part if there were earnings attributable to the excess contributions distributed from your Trump account.

62	Enter the earnings attributable to the excess contributions distributed from Form 1099-R, box 7d	62	
63	Additional tax. Enter 100% of line 62. Include this amount on Schedule 2 (Form 1040), line 5	63	

Sign Here Only if You Are Filing This Form by Itself and Not With Your Tax Return

Under penalties of perjury, I declare that I have examined this form, including accompanying attachments, and to the best of my knowledge and belief, it is true, correct, and complete. Declaration of preparer (other than taxpayer) is based on all information of which preparer has any knowledge.

Your signature _____

Date _____

Paid Preparer Use Only

Print/Type preparer's name	Preparer's signature	Date	Check ☐ if self-employed	PTIN
Firm's name	Firm's EIN			
Firm's address	Phone no.			